the Canal Zone Code which has been repealed.

(21) Part 121 regulates the inspection and registration of vessels, is amended by revising the citation of authority. Subpart D, providing penalties for violations, is revoked since it is based on Title 2 of the Canal Zone Code which has been repealed.

(22) Part 123 which regulates radio communication, is amended by revising the citation of authority. Section 123.12, providing penalties for violations, is revoked since it is based on Title 2 of the Canal Zone Code which has been repealed.

(23) Part 125, the rules governing sanitary requirements, vessel wastes, garbage and ballast, is amended by revising the citation of authority. Section 125.5, providing penalties for violations, is revoked since it is based on Title 2 of the Canal Zone Code which has been repealed.

(24) Part 133, the rules governing the tolls for use of the canal, is amended by revising the citation of authority. Section 133.1 which establishes the rates of tolls for the Panama Canal is amended to conform with the notice of increase in tolls that became effective October 1, 1979 (44 FR 56837, October 2, 1979).

(25) Part 135, the rules for measurement of vessels, is amended by revising the citation of authority.

(26) Part 201, regulating the judiciary, is amended by revising the citation of authority. Sections 201.1 and 201.2 are revoked and reserved to conform with § 3303(a)(2) of Public Law 96–70, 93 Stat. 499.

(26) Part 251, regulating employment and compensation, is amended by revising the citation of authority.

(27) Part 253, the regulation of the Secretary of the Army, is amended by revising the citation of authority.

REVISION OF 35 CFR:

PART 1—[REVOKED]

1. Part 1 is revoked.

2. Part 3 is amended by revising the part heading, the citation of authority, and subpart A, and revoking and reserving subpart B. As amended, Part 3 reads as follows:

PART 3—ORGANIZATION OF PANAMA CANAL COMMISSION

Subpart A—Continuing Applicability of Panama Canal Regulations

Sec.
1.1 Text of Executive Order 12173.

Subpart B—[Reserved]

Authority.—Issued under the authority vested in President by provisions of 3 U.S.C. 301; Pub. L. 96–70, 93 Stat. 452; EO 12173, dated November 29, 1979, 44 FR 69271, and as President of the United States.

Subpart A—Continuing Applicability of Panama Canal Regulations

§ 1.1 Text of Executive Order 12173.

By the authority vested in me as President of the United States of America by Section 301 of Title 3 of the United States Code, by the Panama Canal Code (76A Stat. 1), as amended, and by Pub. L. 96–70 (93 Stat. 452), and in accordance with the rights granted to the United States of America by the Panama Canal Treaty of 1977 "to manage, operate and maintain the Panama Canal, its complementary works, installations and equipment and to provide for the orderly transit of vessels through the Panama Canal" it is hereby ordered as follows:

1–101. All regulations that were adopted by the President or his delegates pursuant to former Title 2 of the Canal Zone Code (76A Stat. 6–50), repealed by Section 303 (a)(1)[1] of Pub. L. 96–70 shall remain in effect unless or until amended, superseded, or otherwise terminated by the President or the Panama Canal Commission. This extension shall not apply to the extent that any such regulation or action is inconsistent with the provisions of the Panama Canal Treaty of 1977, its implementing agreements, or Pub. L. 96–70.

1–102. The Secretary of Defense shall exercise the powers and carry out the responsibilities vested in the President of the United States by the Panama Canal Code (76A Stat. 1), as amended, and Pub. L. 96–70 (93 Stat. 452), except for those powers and responsibilities vested in the President by Sections 1102(b), 1103, 1104, 1105(a), 1106(b), 1108, 1109(a), 1112(d), 1143(a)(1), 1321(c), 1344(b), 1504(b), 1601(a), 2206(b) and 3301 of Pub. L. 96–70. This delegation shall be effective for 120 days after the date of this order.

Subpart B—[Reserved]

PART 5—[REVOKED]

3. Part 5 is revoked.

PART 7—CLAIMS OF EMPLOYEES OF PANAMA CANAL COMMISSION UNDER MILITARY PERSONNEL AND CIVILIAN EMPLOYEES' CLAIM ACT OF 1964, AS AMENDED

4. Part 7 is amended by revising the part heading (as set forth above) and revising §§ 7.1 (b), (c), (d), (e) and (f); 7.5(c)(2); 7.6 (d) and (g); and 7.9 to read as follows:

§ 7.1 Definitions.

* * * * *

(b) "Employee" means an employee of the Panama Canal Commission (also referred to as "the Commission") and includes a member of the uniformed services assigned to duty with the Commission;

(c) "Government" means the Panama Canal Commission unless the context indicates a broader meaning;

(d) "Chief Financial Officer" means the Chief Financial Officer of the Panama Canal Commission acting for and in behalf of the Commission;

(e) "Chief Accountant" means Chief Accountant of the Panama Canal Commission acting for and in behalf of the Commission;

(f) "Chief, Claims Branch," means the Chief of the Claims Branch, Accounting Division of the Panama Canal Commission acting for and in behalf of the Commission.

§ 7.5 Principal types of claims payable.

* * * * *

(c) * * *

(2) Occurs in areas and installations in the Republic of Panama made available to the United States pursuant to the Panama Canal Treaty of 1977 and related agreements and results from vandalism that is determined to have been politically motivated.

* * * * *

(Sec. 3(b)(1), Pub. L. 96–70, 93 Stat. 455)

§ 7.6 Principal types of claims not payable.

* * * * *

(d) Articles being worn (unless allowable under § 7.5 (c), or (d)).

* * * * *

(g) Claims for loss or damage to motor vehicles or trailers or personal property contained therein (unless allowable under § 7.5 (c), (d) or (g)).

* * * * *

§ 7.9 Claims procedure.

The claimant must submit his claim in writing on a prescribed form covering employees claims for loss of or damage to personal property.

The form should be sent to the Panama Canal Commission, Chief, Claims Branch, Office of Financial Management, APO Miami 34011 (or Balboa, Republic of Panama).

5. Part 9 is amended by revising the part heading; by revising and renumbering the regulation and redesignating it as subpart A; a new subpart B is added. As revised, Part 9 reads as follows:

[1] Editorial Note.—The correct citation is section 3303(a)(1).

PART 9—ORGANIZATION, FUNCTIONS, AND AVAILABILITY OF RECORDS—PANAMA CANAL COMMISSION

Subpart A—Organization and Functions of the Commission; Availability of Information and Official Records.

Sec.
9.1 Purpose of this subpart.
9.2 Organization.
9.3 Functions.
9.4 How to request general information or publications.
9.5 The Freedom of Information Act.
9.6 How to make a Freedom of Information Act request.
9.7 How your Freedom of Information Act request will be handled.
9.8 How to make an appeal under the Freedom of Information Act.
9.9 How your Freedom of Information Act appeal will be handled.
9.10 How the Commission may extend the time to respond to your request or appeal.
9.11 Fees for Freedom of Information Act requests.
9.12 Current index.
9.13 Annual report.

Subpart B—Vital Statistics Records

Sec.
9.31 Definitions.
9.32 Administration.
9.33 Functions of the Vital Statistics Unit.
9.34 Supplementary certificate of adoption.
9.35 New birth certificate upon legitimation.
9.36 Delayed filing of birth certificate.
9.37 Altered certificates.
9.38 Certified copies of records.
9.39 Disclosure of records.

Authority.—5 U.S.C. 552, 81 Stat. 54, as amended by Pub. L. 93–502, 88 Stat. 1561; Sec. 1701, Pub. L. 96–70, 93 Stat. 492; EO 12173, 44 FR 69271; 8 P.C.C. §§ 4, 5, 6, and 8, 88 Stat. 1417.

Subpart A—Organization and Functions of the Commission; Availability of Information and Official Records

Authority.—5 U.S.C. 552, 81 Stat. 54, as amended by Pub. L. 93–502, 88 Stat. 1561.

§ 9.1 Purpose of this subpart.

This subpart describes the organization and functions of the Panama Canal Commission (referred to in this part as "the Commission" or "Agency") and explains how a member of the public may request records from this agency under the Freedom of Information Act.

§ 9.2 Organization.

The principal office of the Panama Canal Commission is located at Balboa Heights, Republic of Panama. The office of the Secretary of the Panama Canal Commission is located at Room 312, Pennsylvania Building, 425 13th Street N.W., Washington, D.C. 20004. The Commission also maintains a procurement office at 4400 Dauphine Street, New Orleans, La. 70140.

§ 9.3 Functions.

(a) The Panama Canal Commission, which replaced the Canal Zone Government and the Panama Canal Company effective October 1, 1979, is established in the executive branch of the United States by the Panama Canal Act of 1979 (Pub. L. 96–70, 93 Stat. 452) as an agency of the United States, for the purpose of maintaining and operating the Panama Canal and the facilities and appurtenances related thereto. As provided in section 1101 of that Act, the authority of the President with respect to the Commission is exercised through the Secretary of Defense.

(b) As provided in the Panama Canal Act of 1979, the supervision of the Commission is vested in a Board composed of nine members, one of whom is the Secretary of Defense or an officer of the Department of Defense designated by the Secretary. Not fewer than five members of the Board are nationals of the United States; the remaining members are nationals of the Republic of Panama.

(c) The President appoints the members of the Board. The members of the Board who are United States nationals are appointed by and with the advice and consent of the Senate. Each member of the Board holds office at the pleasure of the President.

(d) The Administrator of the Commission, who is appointed by the President, by and with the advice and consent of the Senate, holds office at the pleasure of the President.

(e) The Commission maintains and operates the Panama Canal and facilities and appurtenances related thereto, including electric power, water, and telephone systems; procurement and storehouse facilities; motor transportation services; an agency press and duplicating center; marine and general repair shop; and an employees' housing system.

(The Panama Canal Act of 1979, Secs. 1101, 1102, 1103, Pub. L. 96–70, 93 Stat. 456, 457)

§ 9.4 How to request general information or publications.

The Commission has an Office of Public Information which is responsible for providing information about the agency to members of the public and the press. If you are interested in general information about the Commission's activities, or copies of its publications, you should write, visit, or call this office. Address letters to: Panama Canal Commission, Office of Public Information, APO Miami 34011 (or Balboa, Republic of Panama).

§ 9.5 The Freedom of Information Act.

(a) The Freedom of Information Act (5 U.S.C. 552) is a law which creates a procedure for any person to request official records from United States Government agencies. The rest of the rules in this supbart explain how you may request official records from the panama Canal Commission.

(b) The Freedom of Information Act requires every United States Government agency to make official records available to any person who requests them, unless the records that the person requests fall within one of more of the exceptions to availability listed in the law. For more details about these exceptions, see subsection (b) of section 552, Title 5, United States Code, available in libraries.

(c) The Freedom of Information Act does not require an agency to create records or compile information that you would like to have. The law deals only with making existing records available.

§ 9.6 How to make a Freedom of Information Act request.

(a) To make a request for a record using the Freedom of Information Act, you must:

(1) Write to the Panama Canal Commission, Agency Records Officer (Chief, Administrative Services Division), APO Miami 34011 (or Balboa, Republic of Panama); and

(2) State in your letter that you are making a request under the Freedom of Information Act, and clearly mark the envelope "Freedom of Information Act Request". A request under 5 U.S.C. 552 which is not properly addressed and is not marked in this way shall not be considered to be received by the agency until it has actually been received by the Agency Records Officer.

(3) In your letter, reasonably describe the records you are seeking. Be as specific in describing the records as you can. Although it is not required, it will be helpful if, whenever possible, you supply in your letter specific information regarding dates, titles, file designations, the office where you believe the records may be found, and other information which may help to identify the records.

(b) You do not have to explain why you want the records, but it may be helpful if you do so; it may result in a faster or less expensive search; it may sometimes result in a discretionary release of records not required to be released under the Act; or it may help to demonstrate a public interest in a release and thereby lead to a waiver or